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**IN THE FOURTH JUDICIAL DISTRICT COURT  
UTAH COUNTY, STATE OF UTAH**

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STATE OF UTAH,  
  
Plaintiff,

v.

TYLER JAMES ROBINSON,  
  
Defendant.

**NEWS MEDIA'S MOTION FOR  
ATTORNEYS EYES ONLY ACCESS  
TO CLOSURE MOTIONS**

**(Hearing Requested)**

Case No. 251403576

Hon. Tony F. Graf, Jr.

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The Deseret News, Deseret Digital Media, Inc. d/b/a KSL.com, KSL-TV, KSL NewsRadio, KUTV 2News, the Radio Television Digital News Association, the Utah Headliners Chapter of the Society of Professional Journalists, The Salt Lake Tribune, Jessica Schreifels, St. George News, the Associated Press, Fox13 News, Millard County Chronicle Progress, KOAL (Castle County Radio), KUER-FM, Lehi Free Press, The Park Record, CBS Broadcasting, Inc., The New York Times Company, CNN, Fox News Media, and Law & Crime Network (all

collectively, **News Media**) respectfully move the Court to order that counsel for the News Media be provided Attorneys Eyes Only access to motions for closure so the News Media may meaningfully brief those issues for the Court. The News Media request a hearing.

### **ARGUMENT**

Counsel for the News Media are officers of the court. If the defense provides them with their purportedly secret closure papers on the condition they be maintained on an Attorneys Eyes Only basis, there is no reason to believe counsel would violate that restriction. But the defense has refused to provide their sealed submissions, even with that procedural safeguard, to counsel for the News Media, meaning the Court will not receive full and adequate briefing on the weighty constitutional issues of closure. That position is unjustified and contrary to the normal course of this Court's presumptively public proceedings. This Court should flatly reject it.

The News Media ask only this: When someone seeks to override the public's right of access to these proceedings and the papers filed in them, the News Media's counsel should be allowed to see the motion papers supporting that extraordinary request and meaningfully respond on the merits. Their opposition, or at least parts of it, can even be filed under seal until further court order (although even that is going astray from the normal constitutional order). Holding otherwise, as the defense has reflexively insisted, is contrary to the fundamental principles of our adversarial system of justice and the constitutional guarantee, which this Court has repeatedly recognized, that these proceedings should be conducted in the light of day.

Some things are not up for debate. One is that the News Media have a right to be heard, in a *meaningful* manner, on the question of closure of court records, proceedings, and electronic media coverage of these public proceedings. Indeed, the Utah Supreme Court has said they "must be afforded an opportunity to participate in the proceedings *to the maximum extent*

*possible.” Kearns-Tribune Corp. v. Lewis*, 685 P.2d 515, 524 (Utah 1984) (emphasis added); *see also Globe Newspaper Co. v. Superior Court*, 457 U.S. 596, 609 n.25 (1982) (“[R]epresentatives of the press and general public ‘must be given an opportunity to be heard on the question of their exclusion.’” (citation omitted)).

Another is that “the adversarial legal system disfavors one-sided proceedings.” *State v. Archibeque*, 2022 UT 18, ¶ 15, 509 P.3d 768 (cleaned up). Doing what the defense is suggesting is an invitation for this Court to commit error. As the Utah Supreme Court has explained:

One-sided proceedings are disfavored under this system because they deprive the absent party of the right to respond and be heard. Information given to the court in such a proceeding may be incomplete or inaccurate and carries the attendant risk of an erroneous ruling on the law or facts. ***It is therefore inherently unfair to allow one party to put evidence before the court without allowing his opponent the opportunity to test its validity.***

*Id.* (cleaned up) (emphasis added).

Put another way, “[t]imely and adequate notice and an opportunity to be heard *in a meaningful way* are the very heart of procedural fairness.” *Nelson v. Jacobsen*, 669 P.2d 1207, 1211 (Utah 1983) (emphasis added); *see also id.* at 1213 (“To satisfy an essential requisite of procedural due process, a hearing must be prefaced by timely notice which adequately informs the parties of the specific issues they must prepare to meet.” (cleaned up)); *Smith v. Volkswagen SouthTowne, Inc.*, 2022 UT 29, ¶ 116, 513 P.3d 729 (same); *cf. Gordon v. State*, 2016 UT 11, ¶ 16, 369 P.3d 1255 (“A party opposing a motion is entitled to submit a memorandum in opposition. And [petitioner] was afforded no such opportunity. That was error.”).

Requiring the parties to provide closure motions on an Attorneys Eyes Only basis is not a novel idea. It is a commonplace process used by other district court judges in Utah when issues

like this arise.<sup>1</sup> Nor is there any conceivable prejudice to Defendant. Access to motion papers and associated evidence would be limited to the News Media's counsel until further order of the Court, with opposition papers discussing any non-public information also treated similarly. Those procedural safeguards fully protect Defendant's rights while allowing the adversarial process to function properly.

Finally, the latest closure motion filed by the defense seeks to bar all video, audio, and cameras from the courtroom for a case of substantial public interest, contrary to the presumption in the Utah rules allowing such coverage. And it apparently contains more than two-hundred pages of purported "evidence" supporting that request. The defense may not want to have their "evidence" tested in a meaningful adversarial process, but that is not how our system works, and it deprives this Court of the advocacy it needs to properly do its job.

### **CONCLUSION**

For these reasons, this Court should order that any non-public closure motions and related papers be timely served on counsel for the News Media, to be maintained as Attorneys Eyes Only until further order of the Court.

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<sup>1</sup> See, e.g., *State v. Allgier*, No. 071904711 (Utah 3d Dist. Ct.), (Order entered Sept 30, 2008).

RESPECTFULLY SUBMITTED this 29th day of January 2026.

**PARR BROWN GEE & LOVELESS**

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